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Case Number: 26STCV03307 Hearing Date: September 24, 2026 Dept: 224

Ren v. Gilbertson et al.,

TENTATIVE RULING

Defendants' special motion to strike is GRANTED as to defendant Tom Weiner. The Complaint is stricken in its entirety as to Weiner, without leave to amend.

Defendants' special motion to strike is DENIED as to defendant City of Walnut.

The Court declines to rule on the alternative demurrer, which is taken off calendar as not separately noticed or reserved.

Moving party to give notice.

Introduction

On February 2, 2026, Plaintiff Alex Ren, in pro per, filed the Verified Taxpayer Complaint in this action against Defendants David Gilbertson, RKA Consulting Group, Tom Weiner, and the City of Walnut.

On April 7, 2026, Defendants City of Walnut and Tom Weiner filed the instant Special Motion to Strike.

On May 15, 2026, Plaintiff filed an opposition.

On September 1, 2026, Plaintiff filed an Amended Opposition, which expressly supersedes and replaces the May 15, 2026 opposition.

On September 17, 2026, Defendants filed a reply.

Legal Standard

Code of Civil Procedure section 425.16 provides in pertinent part as follows:

“(b)(1) A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.”

(Code Civ. Proc. 425.16(b)(1).) A special motion to strike is authorized against SLAPP suits (Strategic Litigation Against Public Participation), i.e., “lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (Code Civ. Proc. 425.16(a).) An anti-SLAPP motion may be used to strike allegations of protected activity, even if the motion does not defeat the entire cause of action. (Baral v. Schnitt (2016) 1 Cal.5th 375, 385-390, disapproving Mann v. Quality Old Time Service, Inc. (2004) 120 Cal.App.4th 90 and its progeny).

In assessing a defendant's section 425.16 special motion to strike, the court must engage in a two-step process. (Shekhter v. Financial Indem. Co. (2001) 89 Cal.App.4th 141, 150.) First, the court must decide whether the defendant has met the threshold burden of showing that the plaintiff's cause of action arises from the defendant's constitutional rights of free speech or petition for redress of grievances. (Id.) This burden may be met by showing the act which forms the basis for the plaintiff's cause of action was an act that falls within one of the four categories of conduct set forth in 425.16(e).

The four categories, generally speaking, include: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16(e). Speech or conduct that falls under categories (1) and (2) does not have to be connected to a public issue, while speech and conduct falling under categories (3) and (4) must be in connection with a public issue. (Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1117 (differentiating CCP 425.16, subdivision (e), clauses (1) and (2) from same section and subdivision, clauses (3) and (4)); Commonwealth Energy Corp. v. Investor Data Exchange, Inc. (2003) 110 Cal.App.4th 26, 32 (citing Briggs).)

If the defendant meets the initial burden, the burden then shifts to the plaintiff to establish a probability that the plaintiff will prevail on the claim. (Shekhter supra 89 Cal.App.4th at 151.) To meet this burden, the plaintiff “must demonstrate that the complaint is both legally sufficient and supported by a prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 89; internal quotations omitted.)

Special Motion to Strike

Defendants City of Walnut and Tom Weiner move under Code of Civil Procedure section 425.16 to strike the Complaint in its entirety, comprising the first cause of action under Code of Civil Procedure section 526a, the second cause of action under Government Code section 1090, the third cause of action under Government Code section 1092, and the fourth cause of action for declaratory relief under Government Code section 1097.

Section 425.17(b) Public Interest Exemption

As a threshold matter, the Court addresses Plaintiff's contention that the Court need not reach either prong because section 425.17(b) exempts this taxpayer action from section 425.16.

Section 425.17(b) provides that section 425.16 does not apply to an action brought solely in the public interest or on behalf of the general public if all three of the following conditions exist: (1) the plaintiff does not seek any relief greater than or different

from the relief sought for the general public or a class of which the plaintiff is a member; (2) the action, if successful, would enforce an important right affecting the public interest and would confer a significant benefit on the general public or a large class of persons; and (3) private enforcement is necessary and places a disproportionate financial burden on the plaintiff in relation to the plaintiff's stake in the matter. Under subdivision (b)(1), a claim for attorney's fees, costs, or penalties does not constitute greater or different relief.

Section 425.16 is to be construed broadly, and the exemptions of section 425.17 are to be construed narrowly. (*Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309, 316.) Plaintiff bears the burden of establishing the exemption. (*Har Construction, supra*, 240 Cal.App.4th at 622.) The word "solely" is given effect: "If any part of the complaint seeks relief to directly benefit the plaintiff, by securing relief greater than or different from that sought on behalf of the general public, the section 425.17(b) exception does not apply." (*Club Members, supra*, 45 Cal.4th at 312, 317.) The inquiry is directed to the relief sought in the complaint, not to the plaintiff's motives. (*Id.* at 316–317; *Tourgeman v. Nelson & Kennard* (2014) 222 Cal.App.4th 1447, 1460.)

Plaintiff relies principally on *San Diegans for Open Government v. Har Construction, Inc.*, *supra*, 240 Cal.App.4th 611, in which the Court of Appeal applied the exemption to a taxpayer action seeking recovery of public contract payments under Government Code section 1090 and did not reach the two-step analysis. The relief sought in *Har Construction* was confined to recovery for the district. (*Har Construction, supra*, 240 Cal.App.4th at 616–617.)

The restitution Plaintiff seeks here would likewise be paid to the City. (Complaint ¶ 58; Supp. Ren Decl. ¶ 7.) However, here, the Prayer also seeks an injunction disqualifying Gilbertson and Weiner from holding office in the State of California and barring RKA from participating in City contracting for engineering services. (Complaint ¶ 57.)

The Notice of Related Case identifies *Alex Ren v. City of Walnut, et al.*, Case No. 2:25-cv-10718. It states that the two actions involve overlapping factual allegations concerning the City and its officials but seek different relief in different forums.

The federal First Amended Complaint names the City, RKA, Gilbertson, three other RKA employees, and a City employee. It challenges code enforcement at Plaintiff's property conducted by RKA personnel acting as City officials. (Borgen Decl. ¶ 4, Exs. 1, 3–6.) It alleges that Weiner, although not named as a defendant, demanded that Plaintiff apply for a permit and threatened a lien on his property. It further alleges that RKA's compensation under the 1991 Agreement gives RKA a financial interest in enforcement, and on that basis asserts a section 1090 claim against RKA and its employees. It prays for restitution and disgorgement, and for an injunction against further enforcement demands, stop-work orders, and undisclosed entries by the City's contractors. (*Id.*, Ex. 14.)

Plaintiff confirms that the federal litigation prompted the investigation that produced this action. (Supp. Ren Decl. ¶ 4.)

Against that background, the injunction requested in paragraph 57 seeks a narrower advantage for Plaintiff. RKA and its personnel, including Gilbertson, are the parties Plaintiff is suing over enforcement at his property. Weiner is the official Plaintiff alleges personally demanded the permit and threatened the lien. An order removing them would directly change who exercises the City's authority in Plaintiff's own ongoing dispute. That benefit to Plaintiff differs from any benefit to the general public.

Club Members supports this conclusion. The plaintiffs there sought, among other things, to install the plaintiff candidate and his allies on the board and to bar specified incumbent directors from running again. The Supreme Court held that relief calculated to advantage the plaintiffs in their own contest took the action outside section 425.17(b). (*Club Members, supra*, 45 Cal.4th at 317.) The relief here would not seat Plaintiff in any position, but the principle is the same. An order framed in public terms that, in context, would remove the plaintiff's adversaries from the dispute he is litigating is not relief sought solely in the public interest.

Subdivision (b)(1)'s provision that a claim for penalties is not greater or different relief does not change the result. Even assuming that disqualification under section 1097 is a penalty, the request to bar RKA from City engineering contracting is

not. That request independently confers the advantage described above.

Plaintiff declares that he does not seek, in this action, to stop code enforcement or to recover public funds for himself. He also declares that enforcement continued and intensified after he filed suit. (Supp. Ren Decl. ¶¶ 5–7.) The Court accepts those statements, but they do not change the analysis. The question is what the pleaded relief would accomplish if granted, not what Plaintiff intends or what has happened since filing. For the same reason, Defendants' characterization of Plaintiff's motive would not, standing alone, defeat the exemption, and the Court does not rest on it.

Plaintiff has not satisfied subdivision (b)(1). Because all three conditions must exist, the Court does not reach subdivisions (b)(2) and (b)(3). The exemption does not apply, and the Court proceeds to the two-step analysis.

First Prong

Weiner

The Complaint alleges one act by Weiner. Each staff report authored by Gilbertson was transmitted and submitted to the City Council "via" Weiner in his capacity as City Manager, and Weiner thereby transmitted and facilitated City Council approval of those reports without recusal, conflict screening, or mitigation. (Complaint ¶¶ 15, 18-20, 23, 44.)

"To prevail on an anti-SLAPP motion, the movant must first make 'a threshold showing the challenged cause of action' arises from an act in furtherance of the right of petition or free speech in connection with a public issue." (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 192.) "A claim arises from protected activity when that activity underlies or forms the basis for the claim." (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062.) This burden may be met by showing the act which forms the basis for the plaintiff's cause of action was an act that falls within one of the four categories of conduct set forth in 425.16(e).

Whether the anti-SLAPP statute applies is determined by the "principal thrust" or "gravamen" of the claim and therefore the statute cannot be invoked for allegations of protected activity that are only incidental to a cause of action based on unprotected activity. (Martinez v. Metabolife Int'l, Inc. (2003) 113 Cal.App.4th 181, 185.)

Here, the transmission of the staff reports is not incidental background. It is the entirety of the conduct on which liability against Weiner is premised. The second cause of action alleges that Weiner aided and abetted a section 1090 violation by transmitting the reports. The first, third, and fourth causes of action seek relief against him on the same footing. A staff report submitted for consideration by the City Council at a public meeting is a writing made before a legislative proceeding and in connection with an issue under review by a legislative body. (Code Civ. Proc., § 425.16(e)(1), (2).) A city council is a legislative body, and its meetings are official proceedings authorized by law.

Communications and votes by public officials in connection with legislative proceedings are protected activity, including where the claim alleges a violation of Government Code section 1090. (City of Montebello v. Vasquez (2016) 1 Cal.5th 409, 422-426.) Allegations of illicit motive do not bear on the first prong. (Bonni v. St. Joseph Health System (2021) 11 Cal.5th at 1008.) Plaintiff's argument that the Complaint alleges "more than passive transmission of words" describes the manner and alleged intent of the protected act. It does not identify any separate, unprotected act by Weiner.

Weiner has carried his threshold burden as to all four causes of action.

City of Walnut

The City has not carried its burden.

Section 425.16(b)(1) reaches a cause of action against a person "arising from any act of that person" in furtherance of protected rights. The Complaint names the City as a nominal defendant for purposes of injunctive and restitutionary relief. (Complaint ¶ 5.) The claims against it challenge governmental action: the approval of contracts with RKA and the expenditure of public funds under them. The relief sought against the City is a declaration that those contracts are void, restitution of funds paid, and an injunction against future RKA engineering contracts. (Id. ¶¶ 55–58.)

The actions of a government entity are not converted into protected activity merely because deliberations, staff recommendations, or votes preceded them. (Park, *supra*, 2 Cal.5th at 1064-1065; San Ramon Valley Fire Protection Dist. v. Contra Costa County Employees' Retirement Assn. (2004) 125 Cal.App.4th 343, 353-358; Graffiti Protective Coatings, Inc. v. City of Pico Rivera (2010) 181 Cal.App.4th 1207, 1214-1215.) City of Montebello expressly distinguishes claims against individual officials premised on their own votes and communications from claims challenging the entity's action. (City of Montebello, *supra*, 1 Cal.5th at 425-426.)

The City identifies no act of its own, as distinct from the conduct of Gilbertson and Weiner, that supplies an element of any cause of action. Thus, the motion fails at the first prong, and the Court does not reach the second prong as to the City.

Second Prong

Because Weiner has carried his threshold burden, the burden shifts to Plaintiff to demonstrate that each cause of action asserted against Weiner is legally sufficient and supported by a *prima facie* showing of facts sufficient to sustain a favorable judgment if his evidence is credited. (Navellier, *supra*, 29 Cal.4th at 89; Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260.)

Plaintiff's evidence consists of the Verified Complaint and its exhibits, Gilbertson's Form 700 disclosing his position as City Engineer and income from RKA (Pl. Ex. 2), Weiner's Forms 700 as City Manager (Pl. Ex. 3), Staff reports for City Council actions from 2021 through 2025 authored by Gilbertson, and records reflecting payments to RKA Consulting Group (Pl. Ex. 4), City website materials describing the City Manager and City Engineer functions (Pl. Ex. 5), the 1991 Agreement for City Engineer Services, and his supplemental declaration.

Aiding and Abetting Under Section 1090(b)

Section 1090(a) prohibits city officers or employees from being financially interested in contracts made by them in their official capacity. Section 1090(b) prohibits aiding or abetting such a violation.

The Complaint alleges no facts showing that Weiner held a financial interest in any contract. Its assertion that both defendants "used their positions for personal gain" (Complaint ¶ 44) is conclusory. Weiner's Forms 700 report no reportable interests on any schedule. (Pl. Ex. 3.) Liability against Weiner therefore depends on aiding and abetting.

Section 1090(b) does not define aiding and abetting. The relief Plaintiff seeks against Weiner arises under section 1097(b). That penal provision reaches an individual who willfully aids or abets a violation. The Court therefore looks to the settled criminal standard: an aider and abettor must act with knowledge of the perpetrator's unlawful purpose and with the intent or purpose of committing, encouraging, or facilitating the offense. (People v. Beeman (1984) 35 Cal.3d 547, 560.)

Plaintiff's evidence establishes, at most, two things. First, Weiner knew Gilbertson was affiliated with RKA, a fact Gilbertson disclosed on his Form 700 and the City publishes on its website. (Pl. Exs. 2, 5.) Second, Weiner transmitted Gilbertson's staff reports proposing RKA work to the City Council for approval or rejection, as the 1991 Agreement contemplates. (Pl. Exs. 4.)

That evidence shows Weiner's participation in an openly disclosed arrangement established by the City Council. It does not support an inference that Weiner acted with the purpose of facilitating an unlawful conflict of interest.

Section 1.08.040(K) of the Walnut Municipal Code, which Defendants cite in reply, requires the City Council to deal with the City's administrative services only through the City Manager. Section 1.08.070(F) provides that no expenditure may be submitted or recommended to the Council except upon the City Manager's report or approval.

Those provisions do not compel the City Manager to forward any particular report. They do establish that routing expenditure proposals to the Council is his ordinary function. Performing that function, without more, is not evidence of willful facilitation.

The Complaint alleges that Weiner acted willfully. (Complaint ¶¶ 31, 44.) It also pleads, in the alternative, that he "knowingly assisted, or at a minimum, negligently enabled" the violations. (Id. ¶ 20.) At the second step the question is whether Plaintiff has evidence of willfulness. He offers none beyond the transmission itself. Negligence would not suffice under section 1097(b).

Relief Sought Against Weiner

Independent of the evidentiary showing, the relief Plaintiff seeks against Weiner is not available in this action.

Section 1097 is a penal provision. It makes a willful violation punishable by fine or imprisonment and provides that the violator is forever disqualified from holding office in this state. (Gov. Code, § 1097(a), (b).) Criminal prosecution belongs to the public prosecutor, not a private litigant. (Dix v. Superior Court (1991) 53 Cal.3d 442, 451.) A private taxpayer plaintiff cannot obtain the imposition of those consequences in a civil action, and declaratory relief is not a proper vehicle for the adjudication of criminal liability. The fourth cause of action, which seeks a judicial declaration that Weiner's conduct is subject to section 1097, therefore fails as a matter of law.

As against Weiner, the section 1090 claim seeks the same relief: his disqualification from office under section 1097(b) and a declaration of liability under that section. It fails for the same reasons.

The third cause of action seeks avoidance of contracts under Government Code section 1092 and disgorgement. Section 1092 does not give a person who is not a party to the challenged contract a right of action to avoid it. (San Diegans for Open Government v. Public Facilities Financing Authority (2019) 8 Cal.5th 733.) Plaintiff is not a party to any City-RKA contract, so the third cause of action fails as a matter of law. As to Weiner it also fails because he is not alleged to be a party to, or financially interested in, any of the challenged contracts.

The first cause of action under Code of Civil Procedure section 526a permits an action to restrain illegal expenditures of public funds against an officer, agent, or other person acting on behalf of the local agency. In appropriate cases, an official may be held personally liable to repay funds improperly spent. (Code Civ. Proc., § 526a(a); Stanson v. Mott (1976) 17 Cal.3d 206.) The Complaint seeks no such relief against Weiner. The only relief directed at him personally is disqualification from office, which section 526a does not authorize. Relief restraining payments to RKA runs against the City, which remains a party.

Based on the foregoing, Plaintiff has not made a prima facie showing of facts sufficient to sustain a favorable judgment on any cause of action as against Weiner.

The Alternative Demurrer

In the event any portion of the Complaint is not stricken, Defendants ask the Court to sustain a "fallback" demurrer under Code of Civil Procedure section 430.10(e). The Court declines to rule on that request and treats the demurrer as not properly before it.

A demurrer is a separate proceeding with its own filing, reservation, notice, and briefing requirements. No separate demurrer was filed here. Defendants' combined memorandum does not independently satisfy the requirements applicable to a demurrer, including California Rules of Court, rule 3.1113.

The Court therefore does not reach the sufficiency of the Complaint as against the City, and expresses no view on whether a demurrer would be timely or meritorious. The City may file and serve a properly noticed demurrer, separately reserved through the Court's reservation system, supported by its own memorandum and a meet and confer declaration under section 430.41.

Attorney Fees

A prevailing defendant on a special motion to strike is entitled to recover attorney fees and costs. (Code Civ. Proc., § 425.16(c)(1).) Weiner is the prevailing defendant on this motion and may recover reasonable attorney fees and costs attributable to it, in an amount to be determined by separate noticed motion. The City is not a prevailing defendant and is not entitled to fees. The Court does not find the motion frivolous or solely intended to cause unnecessary delay, and no award is made to Plaintiff under section 425.16(c)(1).

Conclusion

Weiner has satisfied the first prong as to all four causes of action, and Plaintiff has not demonstrated a probability of prevailing on any of them. The City has not satisfied the first prong.

Defendants' special motion to strike is GRANTED as to defendant Tom Weiner. The Complaint is stricken in its entirety as to Weiner, without leave to amend.

Defendants' special motion to strike is DENIED as to defendant City of Walnut.

The Court declines to rule on the alternative demurrer, which is taken off calendar as not separately noticed or reserved.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.